

Court No. - 37

Case :- WRIT - C No. - 37822 of 2017

Petitioner :- Ashwini Kumar Tiwari

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ashok Kumar Shukla, Yogesh Mishra

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

Heard learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for the Electricity Department.

The petitioner admittedly had a tubewell connection. A theft was reported and proceedings were initiated under Section 135 of the Indian Electricity Supply Act, 2003. The petitioner applied for compounding and made certain deposits.

Simultaneously it appears that provisional assessment proceedings were also undertaken and thereafter the provisionally assessed amount was also claimed from the petitioner. Whether any final assessment has been made or not is not clear from the pleadings on record but in the event any assessment has been made then it will be open to the petitioner to approach the respondent no.2 along with a certified copy of this order who shall look into the grievances of the petitioner and pass appropriate orders in so far as assessment is concerned.

In the event the petitioner is prepared to make the payments if they are due, then in that event the Executive Engineer shall also invoke Clause 6.14 of the U.P. Electricity Supply Code, 2005 for facilitating installments keeping in view the fact that the petitioner claims himself to be an agriculturist, and the electricity dues are in relation to a tubewell operation. The petitioner shall in order to indicate his bonafides shall not further proceed with the application under Section 156 (3) Cr.P.C. stated to have been filed against the employees of the Electricity Department.

Writ petition is disposed off with these directions.

Order Date :- 22.8.2017

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